
Plaintiff filed a Motion to Set Aside Notice of Settlement and Enter Judgment. The Motion was originally scheduled for 3/3/26, but the court continued the matter to 4/28/26. The court, however, did not notify the parties of the 4/28/26 hearing, and no appeared. The court continued the matter to 7/14/26, and indicated that it would provide notice to the parties.

But since the Defendant did not file an Answer, the court was only able to provide notice to the Plaintiff of the 7/14/26 hearing.

Defendant has not been given notice.

This is the fault of the court, and it extends its apology.

Disposition

The Motion will be continued to 9/22/26.

Plaintiff to provide notice of hearing to Defendant.

6. 9:00 AM CASE NUMBER: L24-10812

CASE NAME: CROWN ASSET MANAGEMENT, LLC VS. ANNMARIE DELGADO

***HEARING ON MOTION IN RE: FOR ENTERING JUDGMENT PURSUANT TO DEFENDANTS DEFAULT UNDER SETTLEMENT AND RELEASE AGREEMENT**

FILED BY: CROWN ASSET MANAGEMENT, LLC

TENTATIVE RULING:

Any party contesting this tentative ruling must email Dept14@contracosta.courts.ca.gov and opposing parties by 4:00 p.m. on the court day prior to the hearing (7/13/26). If oral argument is requested, the requesting party shall specify the issues to be argued. If properly contested, the hearing will take place on 7/14/26 at 2:00 p.m.

Background

Plaintiff filed a Motion to vacate dismissal and enter judgment pursuant to stipulation, along with a Declaration. The Motion and its supporting documents are timely.

This Motion is unopposed.

Analysis

Mail service was completed at an address for the Defendant where she was personally served with notice of the Summons and Complaint.

Though Defendant never filed an Answer, she did enter into a Stipulation with Plaintiff on this very

matter, showing, by a preponderance of the evidence, that she was aware of this litigation. Defendant has made no effort to file a change of address with the court. Thus, the court finds that Defendant was properly noticed of this Motion.

The parties entered into a CCP 664.6 agreement where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for the dismissal to be vacated and judgment to be entered in the amount of \$7,370.96, plus costs, and less any credits for payments received.

The agreement was included as an exhibit in the Declaration.

The case was then dismissed.

The Defendant made payments of \$122.85.

Costs are \$375.02 as detailed in the Declaration.

Disposition

Plaintiff's Motion is granted. Judgment will be entered in the amount of \$7,623.13.

Plaintiff to file order on Motion, as well as submit Judgment.

7. 9:00 AM CASE NUMBER: L25-00937

CASE NAME: BANK OF AMERICA N.A. VS. DANIEL TOMPKINS

***HEARING ON MOTION IN RE: DISCOVERY FOR ORDER THAT MATTERS IN REQUEST FOR
ADMISSION OF TRUTH OF FACTS BE DEEMED ADMITTED**

FILED BY:

***TENTATIVE RULING**

Any party contesting this tentative ruling must email Dept14@contracosta.courts.ca.gov and opposing parties by 4:00 p.m. on the court day prior to the hearing (7/13/26). If oral argument is requested, the requesting party shall specify the issues to be argued. If properly contested, the hearing will take place on 7/14/26 at 2:00 p.m.

Plaintiff filed a motion for order that matters in request for admission of truth of facts be deemed admitted, on 2/26/26, along with an amended motion of 3/11/26. Both were served at the mailing address listed on Defendant's Answer.

Defendant filed a Response on 3/9/26.

Plaintiff has not filed a Reply.

This was originally scheduled to be heard on 6/16/26 but was continued by the court to 7/14/26. The Defendant was present when the court continued the matter, and the court provided mail notice to